

*****THE SCHEDULE AND POLICY ARE TO BE READ TOGETHER AS ONE CONTRACT*****

Should be visible at the top of front page

MOTOR PRIVATE (PERSONAL LINES)- IMPORTANT CONDITIONS AND CLAUSES

1.EXCESS STRUCTURE

TABLE OF EXCESSES – AMOUNTS TO BE BORNE BY THE INSURED ON EACH AND EVERY CLAIM	
1. LOCAL VEHICLES	
	Basic Excess: 5% of Claim, Minimum P3 000
	Theft / Hijack: 15% of loss, Minimum P5 000
	Windscreen Excess: 25% of loss, Minimum P500
	Theft of Accessories: 25% of loss, Minimum P1 000
	Cumulative and Punitive Excesses (to be added on the Basic Excess Above)
	Driver under the age of 25 years or over 75 years: Additional 5% of the claim
	Driver's licence less than 2 years: Additional 5% of the claim
	Single Vehicle Road Accidents: Additional 5% of the claim
	Previous Claims in past 12 months: Additional 5% of claim
2 GREY IMPORT VEHICLES	
	Basic Excess: 10% of Claim, Minimum P3 500
	Theft / Hijack: 20% of loss, Minimum P5 000
	Windscreen Excess: 25% of loss, Minimum P500
	Theft of Accessories: 25% of loss, Minimum P1 000
	Cumulative and Punitive Excesses (to be added on the Basic Excess Above)
	Driver under the age of 25 years or over 75 years: Additional 10% of the claim
	Driver's licence less than 2 years: Additional 10% of the claim
	Single Vehicle Road Accidents: Additional 10% of the claim
	Previous Claims in past 12 months: Additional 10% of claim

2.IMPORTANT POLICY CONDITIONS

2.1.ANTI-THEFT DEVICES

- (i) All vehicles must be fitted with an approved or factory fitted alarm / immobilizer. If not fitted then an additional first amount payable for theft of 10% of claim, minimum P2500 shall apply over and above the existing amount payable by the insured in terms of this policy for loss or damage caused by or resulting from theft or hijacking
- (ii) All vehicles having a limit of indemnity from P700 000 and above (inclusive of VAT) must be fitted with an approved alarm/immobilizer plus an approved tracking device and the insured must be a fully paid-up subscriber of the tracking company.
- (iii) The tracking device should be kept in working order and activated;
- (iv) The company shall have the right to reject the insured's theft, hijacking or attempted theft / hijacking claim if the device was not active at the time of loss.

2.2. CONDITIONS FOR GREY IMPORTED VEHICLES

The cover provided by this policy will not apply to "Grey Imported Vehicles" being those vehicles imported into Botswana by Agents other than the original manufacturers or their authorised representatives, unless the status of such vehicles have been disclosed to the Company and the Company has been provided with a copy of the Purchase Invoice including Vat, duties and other taxes in respect of such vehicles, and an inspection by any approved representative, assessor or valuer. In the event of total loss, the settlement shall not exceed the depreciated value of the vehicle or sum insured, whichever is lesser. Depreciation will be calculated at 12% from the date of registration in Botswana.

2.3. REPLACEMENT OF PARTS

- (i) If your car is still covered by the manufacturer's warranty, a service or a motor plan, we will repair your car according to manufacturer's specifications. If we replace windows, we may use glass which was not produced by the original manufacturer. The glass will meet the South African Bureau of Standards (SABS) safety and quality standards
- (ii) If your car is no longer covered by the manufacturer's warranty, a service or a motor plan, we may use:
 - new parts;
 - parts which are consistent with the age or condition of your car; or

- approved alternative parts.
- (iii) If any damaged part forms part of a set (for example side mirrors), we will only pay for the replacement of the actual part that is damaged
- (iv) If any part or accessory is no longer available from the manufacturer, or is not available in South Africa, we will only pay the cost of:
 - a similar part or accessory that is available; or
 - the last listed price of the part or accessory that is no longer available.
- (v) The Company is not responsible for any additional costs because of a delay in the supply of parts or accessories.

2.4. PREMIUM PAYMENT

- (i) The insurance contract is conditional upon and will only come into effect following payment of the premium by the insured and the receipt thereof by or on behalf of the insurer, and such premium is payable on or before inception date or renewal date, as the case may be.
- (ii) You are entitled to a period of 15 days from the due date within which to pay your premium, however this period of grace applies from the second month on monthly policies only (The first month premium is payable upfront in advance). Please check your policy for the due date.

2.5. COVER OUTSIDE BOTSWANA

There is no third-party legal liability cover when you travel outside Botswana. In addition, you will be responsible for the cost of towing your vehicle up to the nearest Botswana border point. The Company is only liable for the costs of towing from the nearest Botswana border point

2.6. FIRST LOSS PAYEE CLAUSE (FINANCIAL INTEREST)

It is understood and agreed that the Bank named in the Schedule is interested in any monies which but for this endorsement would be payable to the Insured under this Policy in respect of loss of or damage to the insured property and such monies shall be paid to the Bank until such time as notice is given by them to the Company that they have no further financial interest in the insured property and their receipt shall be a full and final discharge to the Company in respect of such loss or damage. Save as by this endorsement expressly agreed, nothing in this memorandum shall modify or affect the

rights and liability of the Insured or the Company respectively under or in connection with the Policy.

And it is further agreed that whenever the Company shall pay the said Bank any sum in respect of loss or damage under this Policy and shall claim that as to the Insured or Owner no liability therefore existed, the Company shall become legally subrogated to all the rights of Bank to the extent of such payment but not so as to impair the right of the said Bank to recover the full amount of any claim it may have on such Insured or Owner or on any other party or parties insured under this Policy or from any securities of funds available.

2.7 COMPLAINTS RESOLUTION PROCEDURE

If you have a complaint about this product, please contact your broker or your local office of the insurer. If the matter cannot be resolved, please submit a complaint in writing to the insurer's Compliance Officer as follows:

The Complaints Officer/ Compliance Officer

Phoenix Of Botswana Assurance Company (Pty) Ltd

P O Box 361, Masa Center Gaborone, Botswana

Tel No. (267) 3161322 Gaborone

Email: complaints@phoenixbotswana.com

2.8 YOUR GUIDE TO A SMOOTH CLAIMS PROCESS

We are committed to handling your claim fairly and efficiently. To help us help you, please take note of the following requirements. This guide should be read in conjunction with your full policy document, which contains the complete terms, conditions, and exclusions. The below is only a snapshot, intended to give you a clear overview of what is required for a smooth claims process.

1. General Requirements (Apply to All Claims)

Notify Us Early

- Report any incident within 30 days and as soon as reasonably possible.
- Email notification to claims1@phoenixbotswana.com in the subject line should be as per the below

[POLICY NAME] – [CLAIM TYPE] – [REGISTRATION/PLOT NUMBER/PHONE TYPE/SPECIFIED ITEM]

- This ensures your claim is registered while you gather supporting documents.

Provide Proof of Loss

- The responsibility rests with you, the client, to prove your loss.
- Submit invoices, reports, valuations, or other evidence promptly.

When Claims May Be Declined (Repudiated)

- The event is not covered under your policy.
- Misrepresentation, discrepancies, or non-disclosure of material facts.
- Fraud, inflated claims, or bad faith.

- Failure to meet policy conditions (e.g., driver licensing, time limits).
- o If a claim is declined, we will always provide a clear written explanation.

Legal & Liability Conduct

- Do not admit liability to any third party, verbally or in writing.
- Do not appoint your own lawyer or enter into negotiations/settlements without our written consent.
- Immediately forward any legal notices, summons, or third-party demands to us

Professional Communication

- We expect mutual professionalism and respect:
 - o Prompt responses to correspondence.
 - o Clear, respectful tone.
 - o Full cooperation on timelines and requirements.

2. Motor Insurance Claims

- **Police Report:** Submit police report & alcohol test results (if required).
- **Driver's License & Registration:** Provide certified copies.
- **Quotations:** Provide at least three repair quotations.
- **Driver Conduct:** No cover if the driver was unlicensed or under the influence.
- **Excess:** The insured must pay the policy excess before final settlement.
- **Assessors:** Cooperate fully with loss adjusters/assessors when appointed.

3. Non-Motor Claims (Property, Liability & Others)

- **Prompt Reporting:** Notify us immediately and provide full details.
- **Theft/Damage:** Report to police (for theft, malicious damage, loss).
- **Proof of Ownership/Value:** Provide invoices, receipts, or valuations.
- **Third-Party Liability:** Forward legal notices, summons, or demands immediately. Do not admit liability without our consent.
- **Property Handling:** Damaged property may not be abandoned to the insurer.
- **Safety Measures:** Maintain fire, security, and other risk-prevention measures.

By following these steps, we can deliver faster turnaround, fair assessments, and smoother

Please note that claims must be reported as soon as possible after the event giving rise to the claim and must be submitted in writing with documentary proof of your loss. You will be required to notify the police in the event of theft or where a criminal act is suspected. If you have a dispute regarding a claim that is not resolved to your satisfaction by the broker or the insurer, you may submit the complaint to the Regulator for Short-Term Insurance (**NBFIRA**)